novosapien

Data Processing Agreement

Knowledge Hub AI Assistant: Interim Hosting

THE PARTIES

THE PROCESSOR	THE CONTROLLER
Novosapien	**TXN**
Novosapien Global Ltd	TXN Global Limited
Registered in England and Wales	Incorporated in Cyprus
Company no. 17308181	Company no. _____
Registered office Aldgate Tower, 2 Leman Street, London E1 8FA	Registered office Office 303, 20 Iacovou Patatsou, Egkomi, 2408 Nicosia, Cyprus
Notices to info@novosapien.ai	Notices to _____

Dated _____ 2026

Background. TXN operates a Knowledge Hub for developers. Novosapien built the AI assistant that answers questions on it. Until the assistant moves to hosting provided by Direct Transact, Novosapien hosts it in Novosapien's own Microsoft Azure subscription. In doing so Novosapien processes a limited amount of personal data on TXN's behalf. This Agreement sets the terms for that processing, and meets Article 28 of the EU GDPR and the UK GDPR.

1. What this Agreement covers

1.1 The **Interim Service** is the Knowledge Hub documentation co-pilot and the documentation server, hosted by Novosapien in Novosapien's own Azure subscription in the North Europe (Ireland) region, from the Knowledge Hub launch until Production Cutover. **Production Cutover** is the point, confirmed in writing by both parties, at which the assistant moves to hosting in the TXN Azure subscription operated by Direct Transact.

1.2 What the Interim Service does not touch. The Interim Service answers from TXN's public documentation only. It holds no TXN client data, no cardholder data and no TXN credentials, and it has no access to TxnGlobal.API. Where it runs an example API call, it calls a mock API. Novosapien will not change this scope without TXN's prior written agreement, and a change to it requires an updated Annex A.

1.3 Relationship to the parties' other agreements. This Agreement stands on its own and takes effect whether or not the Master Service Agreement between the parties is signed. When that Agreement is signed, this Agreement continues to govern the Interim Service and is appended to it as an appendix; the Master Service Agreement's own data processing schedule governs processing under that Agreement, and this Agreement prevails for the Interim Service. Nothing here varies the Master Service Agreement or the Support & SLA Agreement.

1.4 Term. This Agreement starts on the date above and ends when Novosapien has deleted the Interim Service data under clause 10 and confirmed that deletion in writing. It continues to apply, in full, to any personal data Novosapien still holds under it, for as long as Novosapien holds it, including a copy isolated in a backup under clause 10.3. Clauses 7, 10, 11 and 12 survive for 12 months after the Agreement ends.

2. Roles and applicable law

2.1 TXN is the **controller** and Novosapien is the **processor** for all personal data described in Annex A. Novosapien does not determine the purposes or means of the processing, and does not process the personal data for its own purposes.

2.2 Data Protection Laws means Regulation (EU) 2016/679 (the EU GDPR), the UK GDPR, the Data Protection Act 2018, and Directive 2002/58/EC as implemented in Cyprus, in each case as applicable to the processing concerned. TXN is established in Cyprus, so the EU GDPR governs TXN's processing as controller. The UK GDPR applies to Novosapien's processing in the United Kingdom. Each party complies with the Data Protection Laws that apply to it.

2.3 TXN's instructions. This Agreement, including Annex A, is TXN's complete documented instruction to Novosapien at the date of signature. Further instructions are given in writing by TXN's named contact. Novosapien **immediately informs** TXN if, in its opinion, an instruction infringes the Data Protection Laws.

2.4 TXN's own obligations. TXN is responsible for the lawful basis for the processing, for the Knowledge Hub privacy notice, for the acceptable use policy that tells visitors not to enter personal data, and for any legitimate interest assessment the Data Protection Laws require. Novosapien gives TXN the factual information TXN needs for each of them.

2.5 TXN's warranty. TXN warrants that it has a lawful basis for the processing it instructs, that it has given data subjects the information the Data Protection Laws require, and that its instructions to Novosapien comply with those Laws. Subject to clause 2.3, Novosapien may rely on TXN's instructions as lawful.

3. Novosapien's obligations as processor

Novosapien will:

(a) Instructions. Process the personal data only on TXN's documented instructions, **including on any transfer of personal data to a third country or an international organisation**, unless required to do otherwise by law, in which case Novosapien informs TXN of that requirement before processing unless the law prohibits it on important grounds of public interest;

(b) People. Ensure that everyone it authorises to process the personal data is bound by a written duty of confidentiality and has been instructed on the limits in clause 6.2;

(c) Security. Implement and maintain the technical and organisational measures in Annex B, and keep them appropriate to the risk as Article 32 requires;

(d) Sub-processors. Engage only the sub-processors listed in Annex C, on the terms in clause 4;

(e) Data subject rights. Taking into account the nature of the processing, help TXN by appropriate technical and organisational measures to respond to a data subject exercising their rights, as clause 8 sets out, and pass any request Novosapien receives directly to TXN without responding to it itself;

(f) Assistance. Help TXN meet its obligations under Articles 32 to 36, including security, breach notification and data protection impact assessments, taking into account the nature of the processing and the information available to Novosapien;

(g) End of processing. On TXN's choice, return or delete the personal data as clause 10 sets out, unless the law requires a copy to be kept; and

(h) Audit. Make available to TXN the information TXN reasonably needs to demonstrate compliance with Article 28, and allow and contribute to audits as clause 11 sets out.

4. Sub-processors

4.1 TXN gives general written authorisation for Novosapien to engage the sub-processors listed in Annex C. Novosapien imposes on each of them, in writing, data protection obligations materially equivalent to those in this Agreement, and **remains fully liable to TXN for their performance**.

4.2 Change control. Novosapien gives TXN at least **20 Business Days'** prior written notice of any intended addition or replacement of a sub-processor. TXN may object on reasonable grounds related to data protection within that period. If the parties cannot resolve the objection, TXN may terminate this Agreement on written notice, without penalty, and clause 10 applies. Novosapien will not route TXN personal data to the objected-to sub-processor while the objection is unresolved.

4.3 A provider used only on failover is still a sub-processor and is listed in Annex C. Novosapien will not route TXN personal data to a provider that is not listed.

5. The AI model

5.1 No training. Novosapien will not use, and will configure its sub-processors so that they do not use, personal data processed under this Agreement to train or improve any foundation model.

5.2 European processing. Model inference runs on the European Union multi-region endpoint. Novosapien will not use a global endpoint. If a model provider ceases to offer a European endpoint, Novosapien will tell TXN before routing any personal data to it and will not do so without TXN's written agreement.

5.3 Zero data retention. Before the Interim Service goes live, Novosapien will disable prompt and response caching on the model project, and will request the model provider's abuse-monitoring exception so that prompts are not retained for abuse monitoring. Caching is disabled from go-live. The abuse-monitoring exception takes effect on the provider's approval; Novosapien will tell TXN in writing if it has not been granted by go-live. Until it is granted, the provider's published abuse-monitoring retention applies, which at the date of this Agreement is up to 30 days. Novosapien will tell TXN if the provider changes that period.

5.4 What reaches the model. Only the visitor's question and TXN's public documentation reach the model. **No IP address and no browser identifier are sent to the model.** Novosapien authenticates to the model provider using short-lived federated credentials, so no long-lived model key exists.

6. Security and access

6.1 Novosapien implements and maintains the technical and organisational measures in **Annex B**, which describe the measures Novosapien actually operates. Novosapien will not materially reduce them during the term.

6.2 Access is controlled by this Agreement. Novosapien's personnel can technically reach the Azure Front Door logs, which hold visitor IP addresses. Novosapien undertakes that its personnel will **not** access those logs, and will not attempt to link an IP address, a browser identifier or a chat to an identifiable person, except where it is necessary to investigate a security incident, to diagnose a fault, or to carry out a written instruction from TXN. Every such access is by a named individual, is logged, and is reported to TXN on request. Novosapien will not approach an internet service provider or any third party to identify the holder of an IP address.

6.3 Access to the Interim Service environment is held by authorised Novosapien engineers only. Novosapien supplies the names on request and removes access within one Business Day when it is no longer required.

7. Personal data breach

7.1 Novosapien notifies TXN of a personal data breach affecting personal data processed under this Agreement **without undue delay and in any event within 24 hours** of becoming aware of it, by email to TXN's named contact. Novosapien also telephones that contact as soon as it reasonably can; the email is the notification, and a failure to make telephone contact does not delay it.

7.2 The notification describes the nature of the breach, the categories and approximate number of data subjects and records concerned, the likely consequences, and the measures taken or proposed. Where Novosapien cannot provide all of it at once, it provides what it has and the rest in phases without further undue delay, so that TXN can meet its own 72-hour obligation under Article 33.

7.3 Novosapien does not notify a supervisory authority or any data subject about a breach affecting TXN personal data unless TXN instructs it to or the law requires it. Novosapien cooperates with TXN's investigation and remediation at no additional charge where the breach arises from the Interim Service.

8. Data subject rights

8.1 The Interim Service has no sign-in and holds no names, email addresses or account records. Novosapien therefore cannot identify a data subject from a name or an email address, and Article 11 applies.

8.2 Where a data subject supplies their chat identifier, and the chat has not yet been deleted under Annex A, Novosapien will delete it, or export it, on TXN's instruction **promptly and in any event within 5 Business Days**.

8.3 Novosapien provides TXN, on request, the information TXN needs to answer a data subject or a supervisory authority about the Interim Service, including the categories of recipient and the retention periods in Annex A.

9. Location and international transfers

9.1 Personal data processed under this Agreement is **stored in Ireland** and **processed by the model in the European Union**. Error reporting is processed in Germany. Annex A and Annex C state the locations in full.

9.2 United Kingdom access. Novosapien's engineers access the environment from the United Kingdom. That transfer relies on the European Commission's adequacy decision for the United Kingdom.

9.3 If the adequacy decision is suspended, withdrawn, amended or expires, the parties will promptly put in place the EU Standard Contractual Clauses, or another valid transfer mechanism, together with a transfer risk assessment. Transfers may continue in the meantime to the extent the law allows. Novosapien will not transfer personal data processed under this Agreement outside the United Kingdom or the EEA other than as Annex C sets out.

10. Retention, deletion and the move to Direct Transact hosting

10.1 Novosapien retains and deletes personal data in line with the retention schedule in Annex A. Deletion of chats, checkpoints and session data runs automatically and is not dependent on a request.

10.2 At Production Cutover, and on any earlier termination of this Agreement, Novosapien deletes the Interim Service database, its logs and its backups, and **confirms that deletion to TXN in writing within 10 Business Days**. If TXN asks before that date, Novosapien first returns the data in a commonly used machine-readable format.

10.3 Where a copy persists in an immutable backup, Novosapien isolates it, applies this Agreement to it, and deletes it on the backup cycle stated in Annex A. Novosapien may retain a copy only where the law requires it, and tells TXN what it has retained and why.

10.4 Long-term documentation store. Where a chat is retained beyond 72 hours to improve TXN's documentation, the browser identifier is stripped before it is written, so the retained record cannot be linked to a browser or a visitor. That store is held in the same European environment.

11. Audit, information and regulatory cooperation

11.1 Novosapien makes available to TXN the information TXN reasonably needs to demonstrate compliance with Article 28, including Annex B, the sub-processor list, the retention configuration and the access records under clause 6.2. Novosapien maintains a written record of the categories of processing it carries out on TXN's behalf, as **Article 30(2)** requires, and provides it to TXN or a supervisory authority on request.

11.2 TXN, its auditors and its competent authorities may audit Novosapien's compliance with this Agreement on **20 Business Days'** notice, during business hours, subject to confidentiality, and once in any 12-month period unless a personal data breach or a regulator requires otherwise. TXN bears its own costs. Novosapien cooperates and contributes to the audit.

11.3 Security monitoring. Novosapien forwards the Interim Service security and application logs to Direct Transact's Microsoft Sentinel instance where TXN instructs it and Direct Transact provides the connection.

11.4 DORA. Recognising that TXN is subject to Regulation (EU) 2022/2554, Novosapien supplies and keeps updated the information TXN needs for its register of information on ICT third-party providers in relation to the Interim Service, tells TXN where the Interim Service is provided from and before changing that location, and assists TXN with ICT incidents affecting it.

11.5 Critical or important function. If TXN confirms in writing that the Interim Service supports a critical or important function under Regulation (EU) 2022/2554, then from that confirmation the audit and access rights in clause 11.2 become unrestricted rights of access, inspection and audit for TXN, its appointed auditors and its competent authorities in relation to the Interim Service, and the once-a-year limit does not apply. No charge applies to this clause.

12. Liability

12.1 Neither party excludes or limits liability for death or personal injury caused by its negligence, for fraud, or for anything else that cannot lawfully be limited. The cap in clause 12.3 also does not apply to **either party's wilful misconduct**, or to **Novosapien's breach of clause 6.2** (the limits on accessing and correlating visitor data).

12.2 Subject to clause 12.1, neither party is liable for indirect or consequential loss, or for loss of profit, revenue, goodwill or anticipated savings.

12.3 Subject to clause 12.1, **each party's total liability under this Agreement is capped at £250,000**. Novosapien maintains cyber insurance of at least £1,000,000 per claim and professional indemnity insurance of at least £1,000,000, and provides evidence of cover on request.

12.4 One pool, not two. If the Master Service Agreement between the parties is signed, the cap in clause 12.3 is not additional to the data protection cap in that Agreement. The two caps are the same amount, and a claim arising from the same facts is capped once at £250,000 in total.

12.5 Regulatory fines. Each party is responsible for its own compliance with the Data Protection Laws in its own role, and for any administrative fine imposed on it for its own breach. An administrative fine imposed on TXN **to the extent it is caused by Novosapien's breach of this Agreement** is a direct loss for which TXN may claim, subject to clause 12.3; clause 12.2 does not exclude it. Novosapien's responsibility for its sub-processors is as clause 4.1 states.

13. General

13.1 This Agreement, with its Annexes, is the entire agreement between the parties on the processing it covers. Variation only in writing signed by both parties. The Annexes form part of this Agreement.

13.2 Notices are given in writing by email: to Novosapien at **info@novosapien.ai**; to TXN at the notice address on the cover page. A breach notification under clause 7 is also given by telephone. **Business Day** means a day, other than a Saturday, Sunday or public holiday, when banks in London are open for business.

13.3 No third-party rights arise under the Contracts (Rights of Third Parties) Act 1999. Invalid provisions are severed. This Agreement may be signed in counterparts and electronically.

13.4 Governing law. This Agreement and any dispute arising from it are governed by the law of England and Wales, and the courts of England and Wales have exclusive jurisdiction.

Signatures

Signed for and on behalf of Novosapien (Novosapien Global Ltd)

Signature _____

Name _____

Title _____

Date _____

Signed for and on behalf of TXN (TXN Global Limited)

Signature _____

Name _____

Title _____

Date _____

ANNEX A

Processing particulars

Subject matter	Hosting and operation of the Knowledge Hub AI assistant (documentation co-pilot and documentation server) for TXN, in Novosapien's Azure subscription, until Production Cutover.
Duration	From the date of this Agreement until Production Cutover, plus the period needed to complete deletion and confirm it under clause 10.2.
Nature and purpose	Answering developer questions from TXN's public documentation; rate limiting and protecting the service against abuse; diagnosing faults; improving TXN's documentation from the questions that are asked.
Types of personal data	**Visitor IP address** (in the Azure Front Door web application firewall logs only; the assistant itself does not read, store or log it). **Browser identifier**: a random value that links a visitor to their own chats, held in the browser for one tab session. **Chat content**: whatever the visitor types. TXN does not ask for personal data and the acceptable use policy tells visitors not to enter it; if a visitor enters it anyway it is treated as personal data and is subject to the retention below. **Application log content**: tool-call arguments and results and a one-line request summary, which can include text a visitor types into an example call. No IP addresses and no browser identifiers. **Error reports**: diagnostic data sent to the error-reporting service, configured not to send IP addresses.
Special category data	None is sought, required or knowingly processed.
Data subjects	Visitors to the TXN Knowledge Hub: developers, integrators and prospective clients. No TXN clients' cardholders.
Excluded from scope	TXN client data, cardholder data, TXN credentials, access to TxnGlobal.API, and pilot sign-up records (names and email addresses), none of which are processed by or migrated to the Interim Service.
Applicable regime	EU GDPR for TXN as controller (TXN Global Limited is established in Cyprus). UK GDPR for Novosapien's processing in the United Kingdom.

Retention schedule

Data	Retention	How it is deleted
Chats, agent checkpoints and session data	**72 hours** after the last message in the chat	Automatic hourly job
Browser identifier (server side)	**72 hours** after the visitor's last activity	Automatic, with the chat
Browser identifier (in the browser)	One tab session	Cleared by the browser on tab close
Front Door firewall logs (containing IP addresses)	**30 days**	Platform retention policy
Application logs	**30 days**	Platform retention policy
Database backups	**7 days**	Rolling backup cycle
Sanitised chats retained to improve TXN's documentation	As long as the purpose requires, and **reviewed at least annually** and at Production Cutover	Browser identifier stripped before writing (clause 10.4). Deleted on TXN's instruction at any review

Error reports	Provider default, no IP addresses	Provider retention policy

Security measures

The technical and organisational measures in Annex B.

TXN contact for instructions and breach notification

Name	
Role	
Email	
Telephone	

ANNEX B

Technical and organisational measures

These measures describe what Novosapien operates for the Interim Service. Novosapien hosts the Interim Service, so the infrastructure, backup and resilience measures below are Novosapien's own, not TXN's.

(a) Network and ingress. The Knowledge Hub reaches the assistant over public HTTPS at Azure Front Door Premium. The web application firewall runs in prevention mode, with a rate limit of 120 requests per minute per visitor for the assistant and 60 for the documentation server. Front Door reaches the assistant over Private Link, so the assistant has **no public IP address**. An outbound firewall blocks every destination that is not on an allow-list.

(b) Authentication. The Knowledge Hub presents a token issued by TXN's authorisation server. The assistant validates the issuer, client identifier, audience and expiry, and accepts calls only from the Knowledge Hub's permitted origins. The assistant authenticates to the model provider with short-lived credentials through workload identity federation, so **no long-lived model key exists**. All other secrets are held in Azure Key Vault.

(c) Encryption. Data in transit is encrypted with TLS 1.2 or higher, enforced at Front Door and at the database. Data at rest is encrypted with Microsoft-managed keys. Customer-managed keys are supported by the platform and are not currently enabled.

(d) Access control. Access to the subscription is held by named, authorised Novosapien engineers only, on a least-privilege basis, with no shared accounts and multi-factor authentication enforced. The database is reachable on the private network only. Access is reviewed periodically and removed within one Business Day when no longer required, including for leavers. Azure logs every management action. The access limits in clause 6.2 apply to all of it.

(e) Separation. Development and production environments are separated. TXN personal data is not used in development or test environments.

(f) Secure development. Code changes are reviewed before merge to a protected main branch and deployed through CI/CD. Dependencies are monitored for known vulnerabilities, and critical vulnerabilities in components Novosapien controls are remediated promptly, targeting 14 days for critical severity.

(g) Logging and monitoring. Logs are held in Azure Log Analytics and can be forwarded to Direct Transact's Microsoft Sentinel under clause 11.3. The application logs **do not store the visitor's message as typed**, and hold no IP addresses and no browser identifiers. Security-relevant logs are retained for 30 days as Annex A states.

(h) Endpoint security. Devices used to deliver the Interim Service have full-disk encryption, screen lock and automatic security updates enabled.

(i) Personnel. All personnel with access to the Interim Service are bound by written confidentiality obligations and receive documented security-awareness guidance on joining.

(j) Incident response. Novosapien maintains a documented incident-response process covering identification, containment, remediation and post-incident review, and notifies TXN of a personal data breach within 24 hours as clause 7 requires.

(k) Resilience and backup. Because Novosapien hosts the Interim Service, Novosapien is responsible for its backup and recovery. Database backups are retained for 7 days. Novosapien keeps the environment defined as code and re-deployable.

(l) Governance. Novosapien maintains an information-security programme owned by Brett St Clair (Co-Founder), reviewed at least annually. Novosapien does not hold ISO 27001 or SOC 2 certification, and does not claim to. Physical and environmental security is inherited from Microsoft Azure's certifications.

(m) No degradation and flow-down. Novosapien imposes materially equivalent obligations on its sub-processors and will not materially reduce the measures in this Annex during the term.

ANNEX C

Sub-processors

The complete list at the date of this Agreement. Changes are made only under clause 4.2.

Sub-processor	What it processes	Location	Terms and retention
Microsoft (Azure)	Hosting, the database, backups and all logs, including the Front Door firewall logs that hold visitor IP addresses	North Europe (Ireland)	Microsoft Products and Services Data Protection Addendum. Retention per Annex A. Encryption at rest with Microsoft-managed keys
Google (Gemini on Vertex AI, Google Cloud)	The visitor's question and TXN's public documentation. **No IP address and no browser identifier**	European Union multi-region	Google Cloud Data Processing Addendum; Google acts as processor. No training on prompts or outputs. Caching disabled and abuse-monitoring exception requested, per clause 5.3
Functional Software, Inc. (Sentry)	Error reports and performance data. **No IP addresses**	European Union (Frankfurt, Germany)	Sentry Data Processing Addendum. Provider retention policy. Novosapien's account

Parties that are not sub-processors

Party	Why it is not a sub-processor
Umbraco	The source of TXN's public documentation. It receives nothing from visitors.
TXN's authorisation server	The assistant reads its public signing keys to validate tokens. It receives nothing from visitors.
Direct Transact	Does not host or access the Interim Service. From Production Cutover it hosts the service in the TXN Azure subscription, as TXN's own provider, and this Agreement ends.
Stackworx	Builds and supports the Knowledge Hub, not the AI assistant. It does not process personal data on Novosapien's behalf.

> **Not used by the Interim Service:** LangSmith tracing and Supabase. Neither receives any personal data processed under this Agreement. The outbound firewall blocks both.